

Late payment penalty remission

Any levy or charge payer or collection agent who has incurred a late payment penalty can apply for remission of the penalty.

You should be aware of your legal obligations, for example collecting the correct amount of levy or export charge if you are a collection agent and paying that to us on time.

For information about how levies apply, visit the [levy and export charge product webpages](#).

When to apply

You can apply as soon as the outstanding levy or charge debt is paid in full, and the amount of penalty owed has been determined, including outstanding debt as part of a repayment arrangement.

If you have a repayment arrangement with us or the application affects multiple return periods you should contact the levies officer managing your account for more information.

How to apply

- Download the late payment penalty remission form.
- Complete every section of the form.
- Submit the form to the Levies Debt Manager by email or post.

Email: leviesdebt@aff.gov.au

Post:

Department of Agriculture, Fisheries and Forestry – Levies Debt Officer
Locked Bag 4488
KINGSTON ACT 2604

For more information about applying for a remission of late payment penalty contact our levies office in your [state or territory](#).

Notifying applicants about a decision

We will notify you of our decision in writing within 20 business days of receiving the completed form.

If we require further information to make a decision, we will notify you within those 20 days. You should ensure that you provide all necessary and supporting information to be considered.

Assessment criteria

You will need to explain why:

- there was a delay making the levy payment after the due date
- the situation was a reasonable cause for that amount of time passing.

The claim should also show that, where a situation could be rectified, it has been resolved and is unlikely to happen again.

If we have formed a preliminary view not to remit the penalty based on adverse information not known or reasonably obvious to you, we will notify you in writing. You will have the opportunity to respond and submit further information to support your claim.

You should provide professional and independent sources of evidence that support your claim where relevant.

Where a statutory declaration is provided it will need to be made in accordance with the Statutory Declarations Regulations 2023.

Download the template and learn more at [Commonwealth statutory declarations](#).

We will consider:

- whether the failure to pay the levy or charge or equivalent amount, that resulted in the penalty, was the result of an honest mistake or inadvertence by the levy payer or charge payer, or collection agent
- the circumstances in which that failure occurred
- the amount of penalty
- the levy payer's, charge payer's or collection agent's history of compliance with Collection Act and Primary Industries Levies and Charges Collection Rules 2024, and
- any other information relevant to your claim.

Honest mistake or inadvertence

- whether you had a mistaken belief about your liability to make payment. For example, that the levy or charge was not due, or that payment had already been made
- whether the failure to pay was an oversight and whether it was rectified promptly once identified.

Evidence that may support your application include:

- letter or certificate from a medical or health care professional
- letter or statement from a financial service provider
- statutory declaration.

The circumstances in which the failure occurred

- were the circumstances reasonably outside your control? Was the situation beyond your control or was it unusual, uncommon or abnormal (not in the normal course of business).
- Circumstances may include (but are not limited to):
 - business circumstances such as a bank delay, damage to business premises or an internet outage
 - family or personal circumstances such as death of an immediate family member or employee or a requirement for urgent medical care
 - financial hardship, where arising from circumstances such as fraud or a debtor's failure to pay, or
 - illness or injury occurring on or before the due date for payment.

Evidence that may support your application include:

- letter or certificate from a medical or health care professional
- letter or statement from a financial service provider
- statutory declaration.

The amount of penalty

- the amount of penalty may be considered against its proportion to the amount of levy or charge payable, the length of time taken to pay the levy and the reasons for the delay and your compliance history.

History of compliance with Collection Act and Collection Rules

- your payment history and compliance with the relevant legislation.

Other considerations

- whether the situation could be rectified, and if so, has this has been completed.
- whether multiple return periods are affected because of the same (or similar situation)? If so, you should explain how have you managed or lessened the likelihood of the situation re-occurring?
- any other relevant considerations.

Request a review of a decision

Internal review

If you are affected by a decision made by a delegate, you can request the Secretary to reconsider the decision to remit penalty.

If you are not satisfied with the outcome of the decision, you can apply for an internal review of the decision.

Internal review is a process where a new decision maker will undertake a review of the decision on its merits and make a new decision affirming the decision, varying the decision or setting aside the decision and substituting a new decision.

How to request an internal review

When you are notified of the outcome of a reviewable decision, you will receive written notification which explains the reasons for the decision. You will also be told what your rights of review are and how you can make an application for review.

The request must set out the reasons for the request. This should be made by notice in writing and within 28 days beginning on the day you were notified of the decision.

You can request an internal review by email or post to:

Email: leviesdebt@aff.gov.au

Post:

Department of Agriculture, Fisheries and Forestry – Levies Debt Officer
Locked Bag 4488
KINGSTON ACT 2604

Review by the Administrative Review Tribunal

If you are still not satisfied with the outcome of the decision following internal review you may then apply to the Administrative Review Tribunal (ART) for a further review of the decision.

The ART conducts independent merits review of administrative decisions made under Commonwealth laws. More information about the ART can be found at: <https://www.art.gov.au/>.

Where the Secretary made the decision personally, the application may be made to the Administrative Review Tribunal without first seeking an internal review of the decision. Decisions made by the Secretary personally cannot be reviewed through internal review.

Your rights of review will be made clear to you in the written notice of decision you receive from the department.

Learn more about applying for a review at [About the ART](#) or phone 1800 228 333.

Primary Industries Legislation

We collect levies and charges under primary industries legislation.

Where an amount of levy or charge remains unpaid after it becomes due for payment, penalty will accrue. The Secretary (or their delegate) can remit the whole penalty or part of the penalty.

This information is a guide only. You must be aware of your obligations under relevant levy and charges laws.

Primary Industries (Excise) Levies Act 2024

Primary Industries (Customs) Charges Act 2024

Primary Industries Levies and Charges Collection Act 2024

Regulatory Powers Act (Standard Provisions) Act 2014

Source: <https://www.agriculture.gov.au/agriculture-land/farm-food-drought/levies/lodging-returns-paying-levies/levy-penalty-remission-guidelines>